

Redline – Newcastle Core Zoning Code

v0.11-draft → v0.12-draft · changed passages only

How to read this redline. Struck-through text was removed; red text was added immediately after it. Only the TEXT of the Code is compared – natively rendered layout (district spreads, Type plates, district maps) and images are not shown here.

2 changed passage(s) shown below, each under its Section location. Unchanged text is omitted.

Article 3 Streets, Roads & Driveways › 5. CLASSIFICATION OF EXISTING STREETS & ROADS › c. INVENTORY OF EXISTING STREETS AND ROADS

C. INVENTORY OF EXISTING STREETS AND ROADS

1. The Town shall maintain an Inventory of Existing Streets and Roads listing, for every street and road segment in Newcastle, the following information:
 - a. Segment name and termini.
 - b. Type assigned under this Article.
 - c. Ownership Category.
 - d. Approximate right-of-way width.
 - e. Approximate traveled way width.
 - f. Adjacent District(s).
 - g. MaineDOT functional classification, where the segment is a state-aid road.
 - h. Notes on nonconformity, where the segment does not currently meet the standards of its assigned Type.
2. The Inventory is incorporated by reference into the District Map as Exhibit 3.1 and is treated as a Special Requirement under Article 2 §4.
3. The initial Inventory is adopted concurrently with this Article. Subsequent amendments to the Inventory are processed under Section 5.E (Reclassification).
4. The Town shall maintain an Inventory of Existing Streets and Roads (Exhibit 3.1) that, for every street and road segment in Newcastle, assigns the segment a Street/Road Type and records descriptive information about the segment.
5. **Classification (binding).** For each segment – identified by its name and termini – the Inventory assigns a Street/Road Type. The Type assignment is the regulatory classification of the segment and is adopted as part of this Code. The standards applicable to a segment are the standards of its assigned Type (Section 2), together with the rules of general application in Section 3. A Type assignment may be changed only under Section 5.E (Reclassification).
6. **Recorded information (reference).** The Inventory also records the following for each segment, for reference and administration. This information is approximate, does not itself establish or limit any standard or dimension, and may be updated by the Town to reflect current conditions; where a recorded entry conflicts with the actual field condition or with a controlling standard of this Code, the actual condition or the controlling standard governs.
 - a. Ownership Category, as determined under Section 4.
 - b. Approximate right-of-way width.
 - c. Approximate traveled way width.
 - d. Adjacent District(s).
 - e. MaineDOT functional classification, where the segment is a state-aid road.
 - f. Notes on nonconformity, where the segment does not currently meet the standards of its assigned Type (Section 14).

7. **Street & Road Type Map.** The Street & Road Type Map (Exhibit 3.2) illustrates the Type assigned to each segment. It is generated from the Inventory and is provided for convenience; where the Map and the Inventory differ, the Inventory governs.
8. The initial Inventory is adopted concurrently with this Article. A change to a segment's assigned Type is processed under Section 5.E (Reclassification); recorded information under paragraph 3 may be updated by the Town without amendment of this Code.

D. CLASSIFICATION RUBRIC

Article 3 Streets, Roads & Driveways › 5. CLASSIFICATION OF EXISTING STREETS & ROADS › e. RECLASSIFICATION

1. The Type assigned to an existing street or road segment may be changed only by:
 - a. Amendment of the District ~~segment's Map~~ **Type assignment in the Inventory (Section 5.C)** under Article 8 §21 Zoning (**Zoning Amendment, Amendment**), processed as a Town Meeting matter; or
 - b. Reclassification under this subsection where, in connection with a proposed alteration or improvement, the abutting District has been amended or the built character has demonstrably changed such that the current Type no longer reflects either.
2. A reclassification petition may be submitted by: